

Final Research Presentation

Sexual Violence and the Justice System: A Systems Thinking Approach

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Abstract

Sexual violence is a serious issue, yet many victims do not receive justice through the criminal justice system. This paper uses systems thinking and reflexive inquiry to explain why these failures happen. Instead of blaming one person or one institution, this paper looks at how police, prosecutors, hospitals, universities, and the media all interact. It also examines how personal beliefs and biases influence decisions. Recent research shows that problems like untested rape kits, case drop offs, and underreporting are connected across the system. The paper argues that real change requires system wide reform, including better policies, improved training, and stronger support for victims.

Sexual violence is a serious issue, but the justice system often struggles to handle these cases effectively. Many victims report feeling ignored, blamed, or not believed when they come forward. Because of this, many people choose not to report at all, which makes the problem harder to measure and address. These issues show that the problem is not just about individual mistakes, but about how the entire system works.

Systems thinking helps explain how different parts of a system connect and influence each other. Instead of looking at one problem in isolation, it looks at how everything works together. Reflexive inquiry focuses on how personal beliefs and biases affect decision making (Schön, 1983). Together, these ideas help explain why the justice system often fails victims of sexual violence. This paper argues that the failure of the justice system is not caused by one issue, but by interconnected institutions, systemic barriers, and personal biases. Understanding these connections is important for creating real and lasting change.

Sexual violence should be understood as a complex system instead of a single issue. A complex system is made up of many parts that interact in ways that are not always predictable. In this case, those parts include police, courts, hospitals, universities, and the media. Each part plays a role, and their actions affect one another.

One important idea in complex systems is that small actions can lead to larger effects over time. For example, if a victim has a negative experience with law enforcement, that one experience may influence whether they or others decide to report crimes in the future. This creates patterns that build over time and shape how the system works. Another important concept

is feedback loops. A feedback loop happens when the outcome of a situation affects future behavior. When victims are not believed, fewer people report sexual violence. When fewer people report, it makes the issue seem less common than it actually is. This can lead to fewer resources being used to address the problem, which then continues the cycle (Meadows, 2008). Understanding sexual violence as a complex system shows why simple solutions are not enough. Fixing one part of the system will not solve the problem if the other parts are still failing.

Systems thinking focuses on how different parts of a system interact rather than looking at them separately. In the justice system, police, prosecutors, courts, and other institutions all depend on each other to function properly. For example, police are responsible for investigating cases and collecting evidence. If an investigation is not thorough, there may not be enough evidence for prosecutors to move forward. If prosecutors do not move forward, the case never reaches court. When this happens often, it creates the belief that sexual violence cases are weak or difficult to prove. Research shows that problems like untested rape kits are not caused by just one issue. They are caused by a combination of factors such as lack of funding, poor communication, and inconsistent policies (Quinlan, 2019). This shows how different parts of the system work together to create the same outcome over time.

Systems thinking helps identify these patterns so that solutions can target the system as a whole instead of just one part. There are many barriers in the justice system that make it difficult for sexual violence cases to move forward. One major issue is how evidence is handled. Many sexual assault kits are never tested or are delayed for long periods of time. A study found that

hundreds of thousands of kits were not submitted for testing, which prevents cases from being solved (Strom et al., 2021).

Another barrier is the level of effort put into investigations. Some cases receive more attention than others, depending on the situation or the beliefs of the investigators. This can lead to inconsistent outcomes where similar cases are treated differently (Jurek et al., 2021).

Communication between agencies is also a major issue. Police, hospitals, and prosecutors often do not share information effectively. For example, if a hospital collects evidence but does not properly communicate with law enforcement, that evidence may not be used. This weakens the case and reduces the chances of prosecution. There are also problems with limited resources. Some departments may not have enough staff or funding to fully investigate every case. As a result, some cases may be pushed aside. These barriers show that the problem is not just about individual decisions but about how the system is organized. Bias plays a major role in how sexual violence cases are handled. Rape myths are false beliefs about sexual assault, such as the idea that victims lie or are responsible for what happened. These beliefs can influence decisions made by police, prosecutors, and judges. Bias is not always obvious. Many people believe they are being fair, but their decisions may still be influenced by unconscious beliefs. For example, victims who delay reporting or who know the offender may be seen as less credible. These assumptions are based on stereotypes rather than evidence. Recent research shows that bias still affects how victims are viewed in court. Some judges rely on stereotypes when deciding whether a victim is credible (Habba et al., 2023). This can lead to unfair outcomes.

Media also plays a role in shaping these beliefs. When media coverage focuses on questioning victims or highlighting rare cases of false accusations, it can influence how people view sexual violence. These biases create a cycle. When cases are dismissed, it reinforces the belief that they were not serious. This leads to continued bias in future cases. Addressing bias requires training, awareness, and accountability.

Different institutions respond to sexual violence in ways that can either help or harm victims. Police may focus on whether a case is likely to succeed instead of fully investigating it. Hospitals may focus on avoiding legal problems rather than providing full support. Universities may prioritize their reputation over student safety. These responses are often influenced by the goals of each institution. For example, a university may be concerned about public image, while a police department may be focused on solving cases quickly. These different priorities can create conflicts that affect how cases are handled. Research shows that coordinated system responses can improve outcomes. When agencies work together and follow better practices, cases are handled more effectively and victims receive better support (Campbell et al., 2020). When institutions fail to work together, it weakens the system. This shows that cooperation is necessary for improvement.

The way the system responds to sexual violence has a strong impact on victims. Many victims experience emotional effects such as anxiety, depression, and trauma. When they feel ignored or blamed, these effects can become worse. Underreporting is also a major issue. Many victims choose not to report sexual violence because they do not trust the system. Research shows that sexual assault is widely underreported, especially on college campuses (Bradshaw & Blei, 2024).

Underreporting makes it difficult to understand how common sexual violence really is. It also allows the problem to continue without being fully addressed. When fewer cases are reported, it can make the system seem more effective than it actually is. Improving how victims are treated can help increase reporting rates and create a more accurate understanding of the issue. Reflexive inquiry focuses on how personal beliefs and experiences influence decisions. In the justice system, individuals bring their own perspectives into their work.

For example, a police officer may have certain expectations about how a victim should act. A prosecutor may make decisions based on past experiences or assumptions. These beliefs can affect how cases are handled, even if the person is not aware of it. Reflexive inquiry encourages individuals to reflect on their thinking and recognize their biases (Schön, 1983). By doing this, they can make more fair and informed decisions.

This is important because improving the system is not just about changing policies. It is also about changing how people think and act within the system. Improving the justice system requires changes across all parts of the system. One important solution is improving evidence processing. This means making sure that all sexual assault kits are tested quickly and that results are shared with the right agencies (Strom et al., 2021).

Another solution is better training for professionals. Law enforcement, prosecutors, and healthcare workers need training on how to handle sexual violence cases and understand trauma. This can help reduce bias and improve how victims are treated. Better communication between

agencies is also important. When police, hospitals, and prosecutors work together, cases can be handled more effectively. This can reduce delays and improve outcomes.

Accountability is another key factor. Institutions should track how cases are handled and identify areas for improvement. Research shows that system wide reforms and collaboration can improve outcomes for victims (Campbell et al., 2020). These solutions show how the system can move from being complex and difficult to understand to being clearer and more effective. The failure of the justice system to properly handle sexual violence is not caused by one issue. It is the result of multiple connected problems across different institutions. Systems thinking shows how these parts interact, while reflexive inquiry explains how personal beliefs influence decisions. Problems like untested evidence, bias, poor communication, and underreporting are all connected (Quinlan, 2019; Strom et al., 2021). This means that solutions must also be connected.

Improving the system requires changes in policies, training, and coordination. It also requires individuals to reflect on their own beliefs and actions. When these changes happen together, the system can become more effective and fair. In the long term, improving the system can help rebuild trust. When victims feel supported and taken seriously, they are more likely to come forward. This can lead to better outcomes and a stronger justice system overall.

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